

25LBCV01553 25LBCV01553

County: los-angeles

Division: Civil Law and Motion

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Case Number: 25LBCV01553 Hearing Date: August 4, 2026 Dept: S28

BACKGROUND

On

May 23, 2025, Plaintiff Jason McCracken ("Plaintiff") commenced this action against Defendant County of Los Angeles ("Defendant") alleging general negligence and premises liability arising out of a slip and fall.

On

May 4, 2026, Defendant filed the instant Motion.

As

of July 29, 2026, no opposition has been filed.

DISCUSSION

Applicable

Law

"A party

against whom a cause of action has been asserted in a complaint or cross-complaint may file a cross-complaint setting forth either or both of the following: . . . (b) Any cause of action he has against a person alleged to be liable thereon, whether or not such person is already a party to the action, if the cause of action asserted in his cross-complaint (1) arises out of the same transaction, occurrence, or series of transactions or occurrences as the cause brought against him or (2) asserts a claim, right, or interest in the property or controversy which is the subject of the cause brought against him." (Code Civ. Proc. ("CCP") §428.10(b).)

A

cross-complaint against any of the parties who filed the initial complaint or cross-complaint against the cross-complainant must be filed before or at the same time as the answer to the initial complaint or cross-complaint, which answer must be filed within 30 days of service of the complaint or cross-complaint. (CCP §§ 412.20(a)(3), 428.50(a), 432.10.) Any other cross-complaint may be filed at any time before the court has set a trial date. (CCP §428.50(b).)

The proposed

cross-complaint is mandatory when it arises out of the same transaction as plaintiff's claim. The court must grant leave to file the mandatory cross-complaint absent bad faith. (CCP § 426.50; *Silver Organizations, Ltd. v. Frank* (1990) 217 Cal.App.3d 94, 99.)

Any party

who failed to bring a compulsory cross-complaint, "whether through oversight, inadvertence, mistake, neglect, or other cause," may apply for leave to file a cross-complaint, and as long as the party acted in "good faith," the court must grant leave. (CCP § 426.50.) This mandatory standard applies regardless of factors such as surprise or undue burden. (See *Silver Organizations Ltd. v. Frank* (1990) 217 Cal.App.3d 94, 98-99 [section 426.50 leave was mandatory, not discretionary, even when requested only five days before trial].)

Leave to file

a permissive cross-complaint need only be granted in the interest of justice. (CCP §428.50(c).) Judicial policy generally supports the resolution of all disputed matters between parties, leave to amend or leave to cross-complaint is typically granted liberally. (See *Kolani v. Gluska* (1998) 64 Cal.App.4th 402, 412.) The Court may, however, deny such leave if there is demonstrated prejudice to the opposing party, such as trial delays, loss of critical evidence, or increased preparation costs. (Id.)

"Cross

complaints for comparative equitable indemnity would appear virtually always transactionally related to the main action." (*Time for Living, Inc. v. Guy Hatfield Homes/All American Develop. Co.* (1991) 230 CA3d 30,

38.)

California

Rules of Court ("CRC"), Rule 3.1324 requires a copy of the proposed cross complaint to be attached to the motion.

Analysis

Defendant

moves for leave to file a cross-complaint for implied indemnity, comparative indemnity, declaratory relief, equitable indemnity, and contribution against proposed Cross-Defendant Sodexo America, LLC. Defendant contends that the factual events in the proposed Cross-Complaint arise out of the same incident and occurrences as Plaintiff's Complaint under CCP sections 428.10(b) and 428.50. Specifically, Defendant asserts that the claims arise from the same alleged slip and fall of Plaintiff. Defendant claims it had contracted with Sodexo to provide cleaning services at the time of the incident, and Plaintiff's injuries stem from a liquid substance that Sodexo allowed to accumulate on the floor. Defendant contends that the Agreement expressly obligates Sodexo to indemnify and defend the County against liability arising from Sodexo's operations at the subject premises, and to maintain insurance naming the County as an additional insured.

Defendant

argues that Sodexo will suffer no prejudice from the filing of this cross-complaint as it has been on notice of the County's indemnity and tender demands throughout the pre-litigation and pretrial process, including by correspondence as recently as May 1, 2026. Defendant further points out that trial is set for March 1, 2027, giving Sodexo ample time to prepare.

Here,

the factual events in Defendant's proposed Cross-Complaint arise out of the same incident and occurrences as Plaintiff's Complaint under CCP sections 428.10(b) and 428.50. The Complaint arises out of a slip and fall occurring in an area where Defendant alleges Sodexo bore contractual responsibility for housekeeping, and was the type of incident which Sodexo agreed to indemnify Defendant for. Despite a formal written demand, Defendant contends that Sodexo has not tendered the County's defense, giving rise to claims for implied indemnity and equitable indemnity.

It is also clearly in the interest of justice to have this proposed Cross-Complaint decided with the main Complaint as the Jury will have to decide the same question under both the Complaint and proposed Cross-Complaint: who is liable for Plaintiff's injuries. Defendant has also satisfied the CRC Rule 3.1324 requirement by filing a copy of the proposed cross-complaint with the instant motion. (See Greco Decl.) It also appears that Sodexo will not be prejudiced as trial is not until March 1, 2027, and it has been on notice of these claims since May of 2026. Finally, no opposition has been filed.

CONCLUSION

Defendant's Motion for Leave to File
Cross-Complaint is GRANTED.